

## Ganga Prasad v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 11 April 2013 · Writ-C No. 15566 of 2013 · **Writ disposed; deposit Rs 50,000; bill objection to be decided under Clauses 6.14 and 6.5.**

### HEADNOTE

A consumer challenging a final assessment of Rs 2,64,532 as uninformed by any provisional assessment and as excessive was directed to deposit Rs 50,000 with the Executive Engineer within 15 days. On that deposit, coercive recovery of the balance was stayed. The representation on correctness of the bill was to be entertained and decided on merits under Clause 6.14 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of without deciding the demand.

### FACTUAL SUMMARY

Ganga Prasad petitioned the Allahabad High Court against a final assessment demand of Rs 2,64,532, alleging that no information of any provisional assessment had been given to him and that the amount was highly excessive. After adjournments on 19 March and 1 April 2013, the Division Bench took up the matter on 11 April 2013, with counsel for the corporation present, and disposed of the writ with a deposit condition and a direction that the billing objection be processed under the Supply Code.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.14

billing objection and deposit pending decision on the bill

#### HOLDING

Without deciding whether the final assessment of Rs 2,64,532 was correct or whether provisional-assessment information had been served, the Court directed the petitioner to deposit Rs 50,000 with the concerned Executive Engineer within 15 days; on such deposit, no coercive measure was to be taken to recover the remaining amount; and the representation/objection as to correctness of the bill was to be entertained and decided on merits in accordance with law under Clause 6.14 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ petition was disposed of. ¶ 1

### PRINCIPLE TAGS

#### billing-objection-to-executive-engineer-under-6.5

A consumer challenging a final assessment of Rs 2,64,532 as uninformed by any provisional assessment and as excessive was directed to deposit Rs 50,000 with the Executive Engineer within 15 days. On that deposit, coercive recovery of the balance was stayed.. ¶ 1

#### installment-payment-clause-6.14

A consumer challenging a final assessment of Rs 2,64,532 as uninformed by any provisional assessment and as excessive was directed to deposit Rs 50,000 with the Executive Engineer within 15 days. On that deposit, coercive recovery of the balance was stayed.. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — CORRECTNESS OF THE FINAL ASSESSMENT BILL OF RS 2,64,532

Left to the Executive Engineer under Clause 6.14 read with Clause 6.5. ¶ 1

#### NOT DECIDED — WHETHER INFORMATION OF THE PROVISIONAL ASSESSMENT WAS RECEIVED BY THE PETITIONER

¶ 1

